

OF THE PARTIES TO THE CREATION OF A TRUST.

Now that we have defined and distributed trusts, we shall next enter upon the creation of them: *First*, By the act of a party, and *Secondly*, By operation of Law. Upon the subject of the former class we propose to treat, *First*, Of the necessary parties to the creation of a trust; *Secondly*, What property may be made the subject of a trust; *Thirdly*, With what formalities a trust may be created; *Fourthly*, Of Transmutation of Possession; *Fifthly*, What may be the object or scope of the trust; and *Sixthly*, In what language a trust may be declared.

In this chapter, we shall consider the necessary parties to a trust, under the three heads of the *Settlor*,¹ the *Trustee*, and the *Cestui que trust*.

SECTION I.

OF THE SETTLOR.

1. **General power creating a trust.** — As the creation of a trust is a modification of property in a particular form, it may be laid down as a general rule that whoever is competent to deal with the legal estate, may, if he be so disposed, vest it in a trustee for the purpose of executing the settlor's intention.

2. **The Crown.** — The *sovereign*,² as to his private property, may, by letters patent, grant it to one person upon trust for another (*a*). But the trust must appear upon the face of the letters patent; for if the grant be expressed to be

(*a*) Bac. on Uses, 66.

¹ The settlor's intent must be carried into effect unless it contravenes some policy of the law. *Wright v. Miller*, 8 N. Y. 9; 59 Am. Dec. 438.

² In the United States, a state may be a settlor. *Commissioners v. Walker*, 6 How. (Miss.) 143; 38 Am. Dec. 433.